

25STCV25867 25STCV25867

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-06-29

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Case Number: 25STCV25867 Hearing Date: June 29, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 06/29/2026

CASE NUMBER: 25STCV25867

CASE NAME: ABLE INVESTMENT

SERVICES, LLC vs CHRISTAIN COPELIN

MOVING PARTY: Plaintiff Able Investment

Services, LLC

OPPOSING PARTY: Defendant Christian Copelin

PROCEEDING: Motion for Summary Judgment

MOVING PAPERS:

06/16/2026

RULING SUMMARY:

Plaintiff Able Investment

Services, LLC has established as a matter of law that Defendant is not in possession

on the Property. As against Defendant, Plaintiff

is entitled to immediate possession of the Property. Therefore summary adjudication is granted in

favor of Plaintiff as to that issue. The

claim for damages is reserved for a subsequent trial.

Background

On

September 03, 2025, Plaintiff Able Investment Services, LLC ("Plaintiff") filed its Complaint against Defendant Christian Copelin ("Defendant"), alleging one cause of action for Unlawful Detainer.

Plaintiff

alleges that a foreclosure was initiated on a loan by Plaintiff to SCLW Holdings, owned by and under the control of Avis Copelin ("Avis")^[1], secured by the real property located at 440 Troy Drive, Hollywood, CA 90068 (the "Property"). Plaintiff further alleges that on or about February 11, 2025, it became the owner of the Property following a non-judicial trustee sale of the Property (the "Foreclosure Sale"), in which Plaintiff was the successful bidder. Plaintiff contends that Defendant, the son of Avis, moved onto the Property on or about February 9, 2025 under Avis' direction to frustrate the foreclosure of the Property and remains in possession of the Property. Plaintiff seeks possession of the Property and damages in the amount of \$283.33 per diem for rent for each day from February 11, 2025, during which Defendants have been in possession of the Property until the date upon possession of the Property is delivered to Plaintiff.

On

September 5, 2025, a Notice of Unlawful Detainer (Eviction) was given by the clerk to (1) Defendant, and (2) all occupants.

On

September 29, 2025, Defendant filed his Answer, which he amended the same day.

On

January 20, 2026, the Court issued an order setting the following dates: (1) Initial Status Conference scheduled for 01/29/27 at 8:30 AM in Department 37 (now Department 413) at Stanley Mosk Courthouse; (2) Final Status Conference scheduled for 03/30/27 at 08:30 AM in Department 37 (now Department 413) at Stanley Mosk Courthouse; and (3) Jury Trial scheduled for 04/06/27 at 10:00 AM in Department 37 at Stanley Mosk Courthouse. The Court noted that Plaintiff had not posted jury fees and ordered Plaintiff to post jury fees by January 29, 2026 or waive jury.

On June

16, 2026, Plaintiff filed (1) an Ex Parte Application seeking an order to

advance its hearing on its Motion for Summary Judgment which was set for August 21, 2026, and (2) its Motion for Summary Judgment.

On June

17, 2026, Plaintiff's Ex Parte Application was granted and the hearing on the Motion for Summary Judgment was advanced to June 29, 2026 at 08:30 AM in Department 413 (formerly Department 37) at Stanley Mosk Courthouse.

Copelin

filed an Opposition on June 26, 2026.

LEGAL STANDARD – Summary judgment (Unlawful Detainer)

"The procedures governing a motion for summary judgment in an unlawful detainer action are streamlined (e.g., separate statements are not required under Code Civ. Proc., § 437c, subd. (s), but such a motion 'shall be granted or denied on the same basis as a motion under § 437c, Code Civ. Proc., § 1170.7. Cal. Rules of Court, rule 3.1351' (Code Civ. Proc., § 1170.7). (See Cal. Rules of Court, rule 3.1351.)" (Borden v. Stiles (2023) 92 Cal.App.5th 337, 344-45.)

The function of a motion for

summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co., (2001) 25 Cal.4th 826, 843.) Code Civ. Proc., § 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp., (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento, (1993) 12 Cal.App.4th 59, 67 [citing FPI Development, Inc. v. Nakashima, (1991) 231 Cal. App. 3d 367, 381-382].)

As to each claim as framed by the complaint, the party moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Code Civ. Proc. §437c(p)(2); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

Once the defendant has met that burden, the burden shifts to the opposing party to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

Request No. 1 [Exh. C - Trustees
Deed Upon Sale recorded on March 4, 2025 on as Instrument No. 220250133895] –
GRANTED.

Request No. 3 [Exh. G - Voluntary
Petition for NonIndividual Filing for Bankruptcy] – GRANTED.

Request No. 5 [Exh. O - Proof of
Service of Summons re: Prejudgment Claim of Right to Possession in this case] –
GRANTED.

DISCUSSION

Plaintiff provides evidence that

Defendant has denied that he was a tenant or in possession of the Property. (See Pl.'s UMF No. 15; Decl. Snyder ¶ 5; Exhs. L-M.) Plaintiff further provides that (1) a California statutory Prejudgment Claim of Right to Possession was served on the occupants of the Property on March 26, 2026, and again on April 17, 2026, in accordance with Code Civ. Proc. §§ 415.46 and 1174.3, and (2) the Prejudgment Claim of Right to Possession has not been returned or filed with the Court; and (3) because of this, any third party is now cut off from asserting any right to possession in this proceeding. (See Pl.'s UMF No. 16; Decl. Snyder ¶ 5; Exhs. N-O.) In the Opposition, Copelin unequivocally acknowledges that he is not and have never been in possession or an occupant of or tenant on the Property. That fact is undisputed.

"The basic elements of unlawful detainer for nonpayment of rent ... are (1) the tenant is in possession of the premises; (2) that possession is without permission; (3) the tenant is in default for nonpayment of rent; (4) the tenant has been properly served with a written three-day notice; and (5) the default continues after the three-day notice period has elapsed." (KB Salt Lake III, LLC v. Fitness Internat., LLC (2023) 95 Cal.App.5th 1032, 1045.)

Plaintiff has further provided the recorded documents regarding ownership (see Requests for Judicial Notice), and documents regarding the Prejudgment Claim of Right to Possession (see Exhs. Exhs. N-O.) The Prejudgment Claim of Right to Possession form allows an occupant, not a party to the lawsuit, to seek to be inserted into the lawsuit if it is filed within ten days of its service. (Code Civ. Proc. § 1174.25.)

Here, Plaintiff has met its initial burden by negating an essential element of Unlawful Detainer (i.e. possession). The burden shifts to Defendant.

Defendant has not disputed the fact that he is not in possession of the Property. He argues that, as a result an element of the unlawful detainer – that defendant is in possession of the Property – has not been established. However, the Court is not precluded from making the finding that Plaintiff has the right to

possession of the Property as against Copelin.

The Opposition makes other arguments regarding disputes over Plaintiff's title to the Property, failure to attach required documents to the Complaint, and other arguments that the Opposition asserts relate to protections afforded to occupants or residential property following foreclosure, none of those arguments apply to Defendant, because he it is established as a matter of law that he is not an occupant of the Property.

Plaintiff has provided the legal standard for the Court to rule on possession without ruling on the amount of damages. (See Mtn. at 6:16-7:20 [citing Northrop Corp. v. Chaparral Energy, Inc. (1985) 168 Cal.App.3d 725; Coyne v. De Leo (2018) 26 Cal.App.5th 801; and Hiona v. Superior Ct. (2020) 48 Cal. App. 5th 866.]) The Court declines to rule on the issue of damages as the evidence presented shows: (1) that Defendant was not in possession of the Property, and (2) the loan was secured by Avis, not Defendant.

Conclusion:

Plaintiff Able Investment Services, LLC has established as a matter of law that Defendant is not in possession on the Property. As against Defendant, Plaintiff is entitled to immediate possession of the Property.

Therefore summary adjudication is granted in favor of Plaintiff as to that issue. The claim for damages is reserved for a subsequent trial.

Date: 06/29/2026 _____

William
E. Weinberger

Judge, Los Angeles Superior Court

[1]

Avis Copelin and Defendant share the same surname. The Court address Avis Copelin by her first name for the purpose of clarity. No disrespect is intended.